IN THE KOTOBABI DISTRICT COURT "1", BEHIND THE KOTOBABI CLUSTER OF SCHOOLS, KOTOBABI, ACCRA HELD ON TUESDAY 5TH AUGUST, 2025 BEFORE HER WORSHIP MAAME YAA A. KUSI-MENSAH (MS).

SUIT NO: A9/072/24

ERIC DENUTSUI - PLAINTIFF
(Suing in his capacity as the Head of Family
For and on behalf of the Denutsui family)
HSE NO 1125/12
PIG FARM
ACCRA

VRS.

THE REGISTERED TRUSTEES OF - DEFENDANT
HOLY GHOST FIRE PRAYER MISSION
HSE NO 1125/12
PIG FARM
ACCRA

Parties: **Plaintiff absent**
Defendant represented by Rev. Aikins Awume (Head Pastor) present

Counsel: **Matilda Naa Lamiokor Lampety (Ms) Esq. holding the brief of Jefferey Abbey Adams Esq. for Plaintiff present;**
Leviel Kuupiel Esq. holding brief for Benedicta Mawuse Fianoo Esq. (Ms) for Defendant present

---

JUDGMENT

The Plaintiff herein, Mr. Eric Denutsui, and the Head pastor of Defendant church herein, Rev. Aikins Awume, are both self-professed Christians, so I will preface this judgment with these two quotations:

1. The first is from the Bible which states: "*In everything, then, do to others as you would have them do to you. For this is the essence of the Law and the Prophets*."-Matthew 7:12;

2. The second quote is attributed to the Spanish priest and theologian which states: "*Let each one remember that he will make progress in all spiritual things only in so far as he rids himself of self love, self - will and self interest*."- St. Ignatius Loyola

The above quotes highlight one of the basic tenets of the mutually-shared Christian faith of the parties herein-i.e. consideration for others above oneself. In spite of this underlying virtue of their common faith to put others above self, the parties have been unable to see eye-to-eye on what a fair compromise with respect to the tenancy arrangement between them should be. One claims that one party has been in occupation of the premises rent free for over twenty years and therefore ought to give up vacant possession while the other claims that the other party is seeking to throw them out solely to take advantage of the improvement done on the premises to increase the value of the property and renege on the original oral agreement between parties to allow them remain on the premises until an alternative place of worship can be secured.

It is this disagreement that lays at the crux of their dispute, and unable to resolve same, they have each attempted at one time or another to have their claims settled using some acceptable legal means including through seeking redress by the rent control office as well as through the law courts.

However, because some prevailing issues remained undetermined, they have once again sought the shelter of the courts in this last attempt to determine their respective rights and entitlements once and for all. In view of the principles of the shared Christian faith of the parties, I hope that we will all keep in mind and reflect on the two quotations I have mentioned above as we journey through this exercise to resolve the final victor in the sight of men.

PROCEDURAL BACKGROUND

Plaintiff commenced this action on 31st August, 2023 by an initial writ and statement of claim filed at the Adabraka District Court 2 (formerly Kaneshie District Court 2) seeking the following reliefs:

a. An order for the recovery of the possession of House Number 125/12, Pig farm, Accra from Defendant.
b. An order directed at Defendant to vacate House Number 125/12, Pig farm, Accra forthwith after the determination of this suit;
c. An order for the enforcement of the ruling made by the Rent Control Magistrate;
d. An order for Defendant to pay rent to the Plaintiff family from the 30th of August, 2018 to date;
e. Cost
f. Any further order (s) as this Honourable Court may deem fit

On 4th October 2023, Defendant filed its statement of defence and counterclaim in the Adabraka District Court 2 while Plaintiff filed his reply and defence to the counterclaim on 22nd November 2023.

Thereafter Plaintiff filed his witness statement on 11th January, 2024. He also filed the witness statement of one Lucy Abena Denutsui (PW1) whom he called as a witness.

Before further directions regarding the conduct of the suit could take place however, the suit was transferred from my sister at the Adabraka District Court 2 to this Court to continue with the hearing of this matter by order of the Honourable Chief Justice dated 16th January, 2024.

Consequently, upon the failure of mediation settlement after reference to same by this Court, and in compliance with the directions of this Court, Defendant then also filed its witness statement on 7th June, 2024 through its head pastor, Rev. Aikins Awume (DW1). Defendant church further filed a witness statement for one Raphael Parku (DW2) who was called as a second witness for the Defendant.

Prior to the commencement of trial, Plaintiff sought leave to amend its writ and statement of claim and same was granted on 24th July, 2024. The amended reliefs Plaintiff now sought were:

a. An order for the recovery of the possession of House Number 125/12, Pig farm, Accra from Defendant.

b. An order directed at Defendant to vacate House Number 125/12, Pig farm, Accra within 3 months after the determination of this suit;
c. Cost
d. Any further order (s) as this Honourable Court may deem fit

Parties elected not to make any changes made to their respective witness statements filed prior to the writ and claim being amended. Case management and pre-trial conferencing was thus conducted and trial in this matter finally concluded on 18th December, 2024. Final addresses to this Court were filed respectively on 9th May, 2025 by Counsel for Defendant and 17th July, 2025 by Counsel for the Plaintiff.

Plaintiff's Case

It is the case of Mr. Denutsui (the Plaintiff) that, he is the family head of the Denutsui family and for that reason, brings this action for recovery of possession of the family property by the authority of the family for and on behalf of the Denutsui family.

According to Plaintiff, Defendant church requested to use and occupy the family land as a temporary place of worship and this permission was granted by the family following which Defendant church came to occupy the premises in 1999. However, Plaintiff states that since 1999 till date, Defendant church has occupied the property without paying rent nor without securing a permanent place of worship. Plaintiff therefore took the matter to the rent control office which recommended that Defendant church vacate the premises on or before 30th August 2018.

Plaintiff states that rather than abide by this recommendation, Defendant church filed an application in the District Court against the decision of the Rent Officer. This application was however dismissed by the said court on 15th October, 2018. Thereafter, Defendant church instituted an action in the High Court for the reliefs outlined below:

i. *A declaration that by the agreement made between the church and the Plaintiff's family, no member of the said family can eject the church from the auditorium it had constructed in the Denutsui house unless the church find a convenient place to move it.*

ii. *A further declaration that the Defendant has no authority to eject the church from the Denutsui house in contravention to the agreement made between the church and the Denutsui family.*

iii. *An order of perpetual injunction directed at the Defendant by himself, his agents, servants, assigns or anybody claiming through, under or in trust for him from interfering in the church's stay and/or activities in the Denutsui house.*

iv. *Any further or other orders as to this Court may appear just.*

v. *Cost including lawyer's fees*

Plaintiff states that the High Court which determined this action instituted by Defendant church (who was the Plaintiff in the High Court action), found as a fact that Defendant church having occupied the premises for about seventeen years at that time was sufficient time to warrant an eviction from the premises. Plaintiff states further that the High Court also found as a fact that Defendant church was not entitled to any of its reliefs and accordingly dismissed same.

Unfortunately for Plaintiff however, because he failed to counter-claim in that action, the High Court did not make any orders in respect of recovery of possession by Plaintiff for and on behalf of the Denutsui family.

Plaintiff indicates that since that judgment given in 2021, he has not been able to recover possession of the property and Defendant church has evinced a clear intention not to vacate the premises for Plaintiff family to enjoy their property unless compelled to do so by this Honourable Court.

It is based on the above situation that Plaintiff commenced this action against all the Defendant herein, seeking the afore-mentioned reliefs from this Court in its amended writ.

Defendant's Case

On its part, Defendant church does not dispute that Plaintiff family is its landlord. Rather, Defendant's disagreement is quite straightforward. According to Defendant church, the church was originally a prayer group that was meeting in the sitting room of the family home of the Denutsui property which was dilapidated and in a deplorable state. Sometime in 2003, the family through the then family head Mr. D.L Denutsui requested for the Defendant to reroof the sitting room and also

renovate and/or reconstruct an apron around the whole family house to prevent it from collapsing which they did. Defendant church further states that the church took official possession in 2004 and not in 1999 as indicated by Plaintiff because following the re-roofing and construction of the apron, the Plaintiff family and Defendant church had an oral agreement sometime in December 2004 that they would utilize a space within the house for its place of worship until it was able to acquire a new place convenient for worship.

In 2005, Plaintiff family demanded the amount of Fifteen million old Ghana Cedis (now One Thousand Five Hundred Ghana Cedis (GHC 1,500) to seal this agreement and after negotiations the parties eventually settled on Ten Million Cedis (now One Thousand Ghana Cedis) being paid to the family. Thereafter, Defendant church began constructing a church auditorium and offices which was eventually completed in 2016. Defendant church further claims that apart from the reroofing and construction of the apron, it also undertook a number of additional projects at Plaintiff family's request as consideration for the occupation of the family land including concreting and cementing the whole floor of the Denutsui family house which was originally sandy; fixing of wooden doors at the various exists of the Denutsui family house; construction of a block fence wall around the entire Denutsui family house; and construction of a modern place of convenience (3 bathrooms and 4 toilets).

Defendant church states that sometime in August 2017, less than a year after it was done with its last project was when Plaintiff demanded Defendant church vacate the premises. Defendant church confirms that the Plaintiff sent the matter to rent control but insists that the rent office erroneously ordered Defendant vacate the premises. Defendant also confirms that the District court also dismissed their action against the orders of the rent office following which they instituted a claim in the High Court. Again too, Defendant church confirms that the High Court in its judgment delivered in 2021 refused all its reliefs and that Plaintiff family could not also recover possession since the High Court in its judgment did not make such an order. Defendant goes on to state that the oral agreement between the Plaintiff family herein and Defendant church was that Defendant would vacate the premises only when Defendant church is able to find a convenient place of worship. Defendant church adds that it has currently acquired land and is working hard to develop same. Defendant contends that Plaintiff family is seeking to unjustly unrich itself at the expense of

Defendant church after all the projects it has completed on the premises spanning from 2003 until 2016. Defendant church indicates that has a small congregation and a corresponding minimal financial strength which is why it took several years to complete its respective projects on the Plaintiff family property but has no intention to remain permanently in possession of Plaintiff property. Defendant church therefore counter-claimed for the following reliefs:

i. An order that Defendant continues to be in possession of the disputed property till Defendant is done developing its new place of worship

In the alternative:

An order by the court for a valuation of the church auditorium and its attached office and an order for Plaintiff family to pay to the Defendant the value of the auditorium and its attached office;

ii. An order that Plaintiff family desists from interfering with the activities of the Defendant church and put an end to any form of unlawful ejection of Defendant;

iii. An order that Plaintiff is not entitled to any rent from the Defendant in the face of all the projects Defendant at the request of Plaintiff family has undertaken as a form of consideration for occupying the Plaintiff family land until Defendant is able to secure another place of worship.

iv. Costs

ISSUES

No issues were expressly agreed to by parties and set down for trial at case management stage prior to the commencement of trial. However, both sides filed their respective issues for trial. Out of the issues filed, the preliminary issue of lack of jurisdiction of this Court based on the doctrine of res judicata was raised by the Defendant and dismissed by the Court in its ruling dated 24th July, 2024.

From the facts and remaining issues filed, this left three issues for determination by this Court: 1) Whether or not Defendant ought to surrender vacant possession of the property to Plaintiff family; 2) Whether or not Defendant is to be given reasonable time within which to vacate the Plaintiff's property; and 3) Whether or not Defendant is entitled to the value of the church building/structures put up after giving up vacant possession.

The Law and Evidential Burden

In matters related to land and ownership of land and the rights associated with same, there is a need for a party to establish their right of ownership to a property in order to justify any acts asserting ownership. This proof is necessary because judgments related to land and ownership rights are judgements in rem and not merely in personam and are therefore enforceable against the whole world and not just the parties in the matter themselves. (See **Akuse Amedeka Citizens Association vs. The Attorney-General & Anor (Suit No. J1/10/2013; judgment dated 5th Jan, 2015)**. In his book '**Land Law, Practice and Conveyance in Ghana (2015)**', the learned author, Sir Justice Dennis Adjei JSC, emphasised that: "***A judgment in rem*** *determines all issues pertaining to the rights and status of the parties or things* ***including the title or right to things and how they could be alienated and it binds all the persons within the jurisdiction of the court that pronounced it****. Judgment in personam on the other hand is between the parties (inter partes) and operates as an estoppel against the parties to the suit only. Where the earlier judgment was in rem, it is likely to operate as an estoppel against all issues as to the parties and the subject matter and their rights, titles and status and how alienation of the subject matter could be made by the parties therein*." (emphasis mine)

With respect to land matters also, the Supreme Court in **Mrs. Elizabeth Osei substituted by Portia Gilard vs. Madam Alice Efua Korang (Civil Appeal No. J4/27/ 2012, judgment dated 20th February, 2013**) citing **Yorkwa vs. Duah [1982-83] GBR 278 CA** with approval further stated:

"Firstly, this is a land case and therefore the plaintiff respondent must succeed on the strength of her own case…then there was the case of Nartey v. Mechanical Lloyd Assembly Plant Ltd. [1987-88] 2 GLR 314 in which Adade JSC stated that a person who comes to court, no matter what the claim is, must be able to make a good case for the court to consider, otherwise he must fail… Lastly, in Odametey v. Clocuh & Anor [1989-90] 1 GLR 14, it was held that if the plaintiff totally failed to make out a case for title to land, he could not rely on the weakness in the defence." (see also **Owusu vs. Tabiri and Anor [1987-1988] 1GLR 297** where it

was emphasised that a party must win his case on the strength of his own case and not on the weakness of the defence).

Additionally, in **Edmund Asante-Appiah vs. Madam Kate Amponsh alias Yaa Mansah** **(Suit No. CA J4/34/2007, judgment dated 20th November, 2008**) it was emphasised that, "*The law is well established that where a party's claims are for possession and perpetual injunction, he puts his title in issue: He thereafter assumes the onus of proving his title by a preponderance of probabilities, like any party who claims declaration of title to land. There are numerous authorities on these, including Adwubeng v. Domfeh [1996-97] SCGLR 660, Ebusuapanin Yaa Kwesi v. Arhin Davis (2006) 2 GMLR50 and the old case of Kponuglo v. Koddadja (1933) 2 WACA 24.*"

It is furthermore an unquestionably well-established principle of evidential law that a party who asserts a fact assumes the responsibility of proving same. The burden of persuasion as well as the burden of producing evidence once it has been shifted lie on both a plaintiff and defendant, and the standard of proof required of both parties in civil cases is on the "preponderance of the probabilities". These evidential rules have been provided for by virtue of **sections 10, 11, 12 and 14 of the Evidence Act, 1975 (NRCD 323)**. In **Ababio vs. Akwasi IV** **[1994-1995] GBR 774** Aikins JSC expounded on this position of the law as follows:

"*The general principle of law is that it is the duty of a Plaintiff to prove what he alleges. In other words, it is the party who raises in his pleadings an issue essential to the success of his case who assumes the burden of proving it. The burden only shifts to the defence to lead evidence to tip the scale in his favour when on a particular issue, the Plaintiff leads some evidence to prove his claim. If the Defendant succeeds in doing this she wins, if not, she loses on that particular issue.*"

Similarly, in **Ackah vs. Pergah Transport Ltd** **[2010] SCGLR 728** these evidential rules were summed up eloquently by her Ladyship Adinyira JSC where it was held that:

"*It is a basic principle of the law of evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility, short of which his claim may fail. The method of producing evidence is varied and it includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence), without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal*

of fact…. It is trite law that matters that are capable of proof must be proved by producing sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more reasonable than its non-existence. This is a requirement of the law on evidence under sections 10 and 11 of the Evidence Decree."

What principles do these authorities highlighted above collectively establish then? Firstly, that in matters of a civil nature, each party has the duty of persuasion and the duty when shifted to produce sufficient and credible evidence to convince the court that their claim is more likely to be true than otherwise. Secondly, that the standard of proof each party has to meet in a civil claim including land-related claims is on the balance of probabilities. Finally, that to succeed in property disputes, a party is required to prove their case on its own strength first and foremost before relying on whatever weaknesses there may be in the defendant's case.

Having briefly highlighted the basic legal positions relevant to this matter, I will move on to the issues to be determined.

1) **Whether or not the Defendant ought to surrender vacant possession of the property to Plaintiff family?; and**
2) **Whether or not Defendant is to be given reasonable time within which to vacate the Plaintiff's property?**

The above two issues are closely-related and will therefore be discussed together.

As I have already indicated, Defendant does not dispute that Plaintiff family is the owner of the premises on which they occupy. Indeed, this fact was admitted to by Defendant church both in its pleadings and in its testimony from its witness statements (see paragraphs 7 and 8 of the statement of defence and paragraphs 3, 4 and 5 of the witness statement of DW1). This admission can also be found during the cross-examination of 1st Defendant witness (DW1) where the following ensued:

"Q: You will agree with me that Defendant church is situated at H/No.1125/12 Pig Farm. Is that not so?

A: Yes my lady.

Q: And you will also agree with that, that house number is a property that belongs to the Denutsui family is that not so?

A: Yes"

(see record of proceedings dated Wednesday 20th November, 2024)

Based on the above admissions, there was no need for Plaintiff family to lead any further evidence to prove their ownership. This is because the law is that where a party makes an averment and that averment is not denied, no issue is joined and there is no need for the party making the averment to lead evidence on that averment to establish same. (See the cases of **Tutu vs. Gogo** (Civil Appeal No 25/67, dated 28th April 1969, Court of Appeal, unreported, digested in [1969] CC 76); **Fori vs. Ayerebi [1966] GLR 627 SC; Quagraine vs. Adams [1981] GLR 599, CA; Hammond vs. Amuah [1991] 1 GLR 89 at 91;** and **Samir Faris vs. Vasken Bakalian & Takoradi Flour Mills [2005-2006] SCGLR 890**).

Furthermore, where an opponent admits to a fact in issue, it is deemed that that fact or issue has been conceded and is no longer in contention. In such circumstances, the court can act on the admitted facts without further proof by the other party of the facts constituting the admissions. In **Fynn vs. Fynn [2013-2014] SCGLR 727 at 738** the Supreme Court emphasised: *"….in the case of In Re Asere Stool; Nikoi Olai Amontia IV (substituted by) Laryea Ayiku III [2005-2006] SCGLR, this court laid down the following salutary rule of law, namely that: 'Where an adversary has admitted a fact advantageous to the cause of a party, the party does not need any better evidence to establish that fact than by relying on such an admission, which is an example of estoppel by conduct.'"* (See also S.A. Brobbey in his book, *'Essentials of the Ghana Law of Evidence'* at pages 112-113).

Thus, what is really in dispute, is not the ownership of the premises by Plaintiff family but rather a) what is the actual length of time Defendant church has been on the Plaintiff family property; and b) whether Defendant ought to give up immediate vacant possession because of this length of time occupied or given further reasonable time within which to vacate.

Defendant church claims that they came into official occupation of the premises as a church sometime in 2003 and not in 1999 as Plaintiff has claimed. However, Defendant itself admits that prior to this same 2003 it was meeting in the living room of the family premises as a prayer group

(see paragraphs 3 and 4 of DW1's witness statement). Furthermore, from Defendant's own Exhibit 4 (which is the statement of claim filed by Defendant in their High Court action), Defendant church admits that it was in 1999 that the church was introduced to the family head and begun to use one of the rooms for worship (see paragraphs 3 and 4 of Exhibit 4).

It is therefore clear that it was indeed from 1999, that Defendant church has in fact been occupying the premises of Plaintiff family and using it as its regular meeting place first in its nature as a prayer group and then later as a full-blown church. The only difference between those two time periods is that it was from somewhere in 2003 that Defendant church sought to more formally structure its relationship with Plaintiff family by entering into some kind of agreement with them regarding their occupancy. I therefore find as a fact that Defendant church has indeed been in occupation of the Plaintiff family premises for the last twenty-six years being from 1999 till date.

Apart from the fact that Defendant church has been in possession for more than twenty years now, it is also evident that Defendant church has not been paying any rent for its occupation. It was found by my big brother at the High Court in its judgment given in 2021 with respect to the proceedings instituted by the Defendant against Plaintiff in that case, that this was not a regular landlord and tenant relationship as there was no agreement to the payment of rent by either party. Rather, the nature of the agreement between parties was a simple contract in which Plaintiff family herein (then the Defendant) permitted Defendant herein (then the Plaintiff) to occupy the premises for an unspecified period of time. I have carefully considered the facts and the evidence before me and I am inclined to agree with this position that there was not a strict landlord and tenancy agreement between the parties herein in so far as there were no clear or express terms for the payment of rent or for the Defendant church to occupy the premises for a fixed and specific period of time which are two key features of a tenancy agreement. Rather, what we have in this case is a kind of contractual tenancy arrangement where Plaintiff family permitted Defendant to utilise its premises for an undetermined period.

Notwithstanding the absence of the regular features of a normal tenancy agreement, it certainly cannot be said that the parties intended that the Defendant church was expected to remain on the premises in perpetuity. Indeed, Plaintiff claims that the parties when they sought to more formally recognise the arrangement between them sometime in 2003, agreed that Defendant church would

occupy the premises for a period of ten years starting from 2004. If this was so, this would mean that the Defendant church was to vacate the premises at the end of 2014. On the other hand, Defendant church claims that there was no such fixed period of occupancy, rather the parties orally agreed that the Defendant church was to remain on the premises until "*Defendant finds a convenient place of worship*." (see paragraph 26 of DW1's witness statement).

However, I found no evidence to support either of these assertions by Plaintiff family or Defendant church. There was nothing to corroborate that the parties eventually agreed to an occupancy of exactly ten years. Neither was there anything to suggest that the Plaintiff family agreed to or intended for Defendant church to remain in the premises until such a time Defendant found its own place of worship. The only thing that is certain from the assertions of both sides is that it was agreed that Defendant was to occupy the premises temporarily and not permanently although the exact timeframe of the occupancy was not expressly agreed to.

In the absence of any specific time period agreed to by the parties to determine when the occupancy would terminate, it is a general principle of contract law that a reasonable time will be implied (see the cases of **Koglex Ltd vs. Kate Field [1998-1999] SCGLR 451; and Gordon Ansah Yalley vs. Marcus Dah-Huss & Anor Suit No E12/50/21, judgment dated 17th October, 2023 HC**). What is "reasonable" is a question of fact to be determined on a case-by-case basis. In Black's law dictionary (9th edition) reasonable was explained to mean, "*fair, proper or moderate under the circumstances*." 'Reasonable time' was further explained in the revised 4th edition of Black's law dictionary to mean, "*Such length of time as* ***may fairly, properly, and reasonably*** *be* ***allowed or required, having regard to the nature of the act or duty, or of the subject-matter, and to the attending circumstances***." (emphasis mine).

I have weighed the attending circumstances of this case, and in my view since Defendant has been worshipping on the premises for twenty-six years now, this is more than enough reasonable time for occupancy.

I am therefore of the view that Defendant ought to surrender immediate vacant possession of the premises to Plaintiff family. In light of this I will grant Plaintiff family's first relief for an order for the recovery of possession of House Number 125/12, Pig farm, Accra from Defendant.

I am further of the view that in the prevailing circumstances, Defendant ought not to be given any more time to vacate. However, seeing as the Defendant is a church and has managed to secure a land on which it seeks to construct a new structure, coupled with the fact that Defendant church will naturally need some time to pack out and secure another temporary place to worship pending the development of its land, I will permit Defendant three months from the date of this judgment to wrap up its affairs in Plaintiff family's property, and deliver vacant possession to Plaintiff family. This means, Defendant church ought to have vacated the premises on or before the 5th of November, 2025.

3) **Whether or not Defendant is entitled to the value of the church building/structures put up after giving up vacant possession?**

The third and final issue considers whether the renovation works conducted on the property ought to be valued as consideration in favour of Defendant church.

Certainly, in any other circumstances, it would only be fair for any works or improvement done on a premises by a defendant to be evaluated and the cost of same reimbursed to such defendant wherever there is recovery of possession. This reimbursement may be in the way of duration of a tenancy by such a defendant or may be by payment of the cash equivalent of the work done.

However, in the current circumstances, Defendant church has stayed in the premises rent free for more than 20 years. Not only that, but Defendant church being also a company limited by guarantee is legally exempt from most tax obligations because most of its revenue accrues from offertory and other voluntary donations and under Ghanaian law such a company is meant not to operate as a profit-making venture. This means that Defendant church for over twenty years now has run without paying rent or paying any tax obligations. Its only expenditure has been the works that have been done on the Plaintiff's family property commencing from sometime in 2003, most of

which projects Defendant has been the primary beneficiary for at least the last eight years when the final project was completed in 2017.

Flowing from the above, I believe any costs that has been expended by the Defendant church should count as consideration for the use of the premises without paying any rent. Even using just Exhibit F (which is the valuation report by AESL of the renovation work done on the premises) as a guide, the cost of the renovation work done was assessed at Seventy-Seven Thousand Four Hundred and Seventy-One Ghana Cedis and Seventy-six pesewas (GHC 77,471.76). This assessment was conducted eight years ago in 2017 and I believe eight years is sufficient time for Defendant to have benefitted from the use of its last or final investment in the property.

I therefore do not believe that it would be fair in the prevailing circumstances to grant Defendant's relief for a valuation of the church auditorium and its attached office and an order for Plaintiff family to pay to the Defendant the value of the auditorium and attached office. This is because Defendant church itself has already benefitted not only from using the premises without paying a dime for its occupancy but has also already benefitted exclusively from its investment by using the facilities it has added to the property without interference for almost ten years now. After all, if Defendant church had been paying rent for the place, the cost of the renovations and/or investment made on the property would most certainly have been used to offset any rent owed. But here is the case where Defendant church has stayed on the premises rent-free for twenty-six years already. To therefore require Plaintiff to now also reimburse Defendant after allowing Defendant to remain on their own family property without taking a pesewa from Defendant for over twenty years now, I believe is most unjust. The fairest thing, is to consider the renovation work as the consideration between the parties in exchange for the rent-free occupancy for the past twenty-six years in accordance with the fair principle of quid pro quo in simple contracts.

I will therefore hold that although Defendant is entitled to the value of the property, it has already received its full value of same in the twenty-six years of rent-free occupancy of the premises of Plaintiff family.

Conclusion

In conclusion, I am not unsympathetic to the plight of Defendant church. However, flowing from the above facts, I have sought to balance fairness to both parties considering the entire circumstances. Furthermore, flowing from the above analysis I find that all the reliefs sought by Defendant church in its counterclaims fails.

I further find Plaintiff is entitled to all its reliefs of:

a) An order for the recovery of the possession of House Number 125/12, Pig farm, Accra from Defendant and I hereby grant the said order for recovery;

b) An order directed at Defendant to vacate House Number 125/12, Pig farm, Accra after the determination of this suit and I hereby grant the said order of vacation and ejectment. Defendant is given three months from the date of this judgment to pack all its personal movable items from the premises i.e. on or before 5th November, 2025.

c) An order for cost, and I will award Plaintiff costs of Five Thousand Ghana Cedis (GHC 5,000) against Defendant.

d) For the further avoidance of doubt, and since these additional issues cropped up during the trial, I will further order that Defendant is to continue to occupy the premises rent free for the next three months until his vacation and/or ejectment from same is due. It is also ordered that any cost of demolition by Plaintiff family following the delivery and/or recovery of vacant possession is to be borne exclusively by Plaintiff family and not Defendant church.

MAAME YAA A. KUSI-MENSAH (MS).

MAGISTRATE